

CHAPTER XI

FALSE EVIDENCE AND OFFENCES AGAINST PUBLIC JUSTICE

Criminal Law I | IPC Sections 191–229A | BNS Sections 227–269, 72–73

A section-by-section study guide covering false evidence, screening offenders, official misconduct, custody, court proceedings and victim identity.

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Chapter Overview

The supplied IPC text covers Sections 191–229A, including inserted lettered sections. Most active counterparts appear in BNS Chapter XIV, Sections 227–269. The exceptions are IPC Section 228A, split into BNS Sections 72 and 73, and the already repealed IPC Sections 216B and 226. For each problem, check the date of conduct, the applicable statute and the elements rather than relying on a section number alone.

IPC Section 191 → BNS Section 227: Giving false evidence

A person under an oath, express legal duty or legally required declaration states something they know or believe is false, or do not believe true. A sincerely held but mistaken belief is different.

IPC Section 192 → BNS Section 228: Fabricating false evidence

Creating a false circumstance, entry or document (including an electronic record) intending to mislead a decision-maker about a material point in a judicial or other legally authorised proceeding.

IPC Section 193 → BNS Section 229: Punishment for false evidence

The judicial-proceeding tier permits imprisonment up to seven years and fine up to ₹10,000; other cases permit up to three years and fine up to ₹5,000. BNS specifies the fine ceilings.

IPC Section 194 → BNS Section 230: False evidence to procure conviction for a capital offence

Giving or fabricating evidence with the required intent or knowledge about a capital conviction carries life imprisonment or rigorous imprisonment up to ten years and fine up to ₹50,000; an innocent person's conviction and execution triggers the separate, more severe consequence.

IPC Section 195 → BNS Section 231: False evidence to procure conviction for a serious non-capital offence

The intended conviction must concern an offence punishable by life imprisonment or imprisonment for seven years or more; punishment follows the offence for which conviction was sought.

IPC Section 195A → BNS Section 232: Threatening a person to give false evidence

Threatening injury to person, reputation or property with intent to cause false evidence is separately punishable. The statute provides a further consequence when an innocent person is sentenced as a result.

IPC Section 196 → BNS Section 233: Using evidence known to be false

Corruptly using or trying to use false or fabricated evidence as genuine is punished like giving or fabricating false evidence.

IPC Section 197 → BNS Section 234: Issuing or signing a false certificate

A legally required or evidential certificate known or believed false on a material point attracts the false-evidence punishment.

IPC Section 198 → BNS Section 235: Using a false certificate

Corruptly using or attempting to use a certificate known false on a material point attracts the false-evidence punishment.

IPC Section 199 → BNS Section 236: False evidential declaration

A knowingly or believed-false material statement in a declaration legally receivable as evidence is punished like false evidence.

IPC Section 200 → BNS Section 237: Using a false declaration

Corrupt use or attempted use of such a declaration, knowing it false in a material respect, is separately covered; an informality alone does not remove it from the provision.

IPC Section 201 → BNS Section 238: Disappearing evidence or false information to screen an offender

The accused knows or has reason to believe an offence occurred and intends to shield the offender. The penalty depends on the underlying offence's maximum punishment.

IPC Section 202 → BNS Section 239: Omitting legally required information about an offence

A person legally bound to report an offence intentionally fails to give that information; BNS caps the fine at ₹5,000.

IPC Section 203 → BNS Section 240: False information about an offence

A person knowing or having reason to believe an offence occurred supplies information about it that they know or believe to be false; this differs from concealment intended to screen an offender.

IPC Section 204 → BNS Section 241: Destroying a document or electronic record to prevent its use

Secretly removing, destroying or rendering illegible material that can lawfully be required as evidence, to prevent its use; BNS provides imprisonment up to three years or fine up to ₹5,000 or both.

IPC Section 205 → BNS Section 242: False personation in a suit or prosecution

Assuming another person's identity to make a statement, admit, arrange process, stand bail or undertake another act in litigation or prosecution.

IPC Section 206 → BNS Section 243: Concealing property from forfeiture or execution

Fraudulently transferring, hiding or removing property to defeat an actual or likely forfeiture, fine or civil decree; BNS raises the imprisonment ceiling to three years.

IPC Section 207 → BNS Section 244: Fraudulent property claim to prevent seizure

Falsely receiving or claiming a property interest without entitlement to prevent its lawful forfeiture or execution.

IPC Section 208 → BNS Section 245: Fraudulently suffering an undue decree

Allowing a decree or order against oneself for an amount or property not due, with the required fraudulent purpose.

IPC Section 209 → BNS Section 246: Dishonestly making a false claim in court

A claim known to be false is made fraudulently, dishonestly or with intent to injure or annoy another person.

IPC Section 210 → BNS Section 247: Fraudulently obtaining an undue decree

Obtaining a decree or order for an amount or property not due, or causing enforcement after satisfaction, with the required fraudulent state of mind.

IPC Section 211 → BNS Section 248: False criminal charge intended to injure

Instituting proceedings or accusing someone despite knowing there is no just or lawful ground, with intent to injure. BNS sets up to five years or fine up to ₹2 lakh for the ordinary tier and up to ten years plus fine for the aggravated tier.

IPC Section 212 → BNS Section 249: Harboursing an offender

Knowingly concealing an offender to screen them from punishment; the sentence scales with the underlying offence. The statutory spouse exception must be checked.

IPC Section 213 → BNS Section 250: Taking a benefit to screen an offender

Accepting or seeking gratification or property restoration in exchange for concealment, screening or refraining from prosecution; punishment depends on the underlying offence.

IPC Section 214 → BNS Section 251: Offering a benefit to screen an offender

Offering gratification or restoring property in exchange for concealment, screening or refraining from prosecution; the statutory exception for an offence lawfully compoundable must be considered.

IPC Section 215 → BNS Section 252: Taking a benefit to help recover stolen property

Taking a benefit on the pretence of helping recover movable property without using all available means to apprehend the offender.

IPC Section 216 → BNS Section 253: Harboursing an escapee or person ordered to be apprehended

Knowingly concealing a person escaped from custody or whose apprehension has been ordered to prevent apprehension; the penalty depends on the underlying charge or sentence.

IPC Section 216A → BNS Section 254: Harboursing robbers or dacoits

Knowing or having reason to believe persons are about to commit or recently committed robbery or dacoity, harbouring them to facilitate the offence or screen them from punishment; the statutory spouse exception applies.

IPC Section 217 → BNS Section 255: Public servant disobeying law to protect person or property

An official knowingly disobeys a legal direction intending to save someone from legal punishment or property from forfeiture or charge.

IPC Section 218 → BNS Section 256: Public servant making an incorrect record

An official knowingly frames an incorrect record or writing intending or knowing it likely to cause loss or injury, protect a person from punishment or save property from forfeiture or charge.

IPC Section 219 → BNS Section 257: Public servant corruptly deciding contrary to law

An official in a judicial proceeding corruptly or maliciously makes a report, order, verdict or decision known to be contrary to law.

IPC Section 220 → BNS Section 258: Unlawful commitment for trial or confinement

A person authorised to commit someone for trial or confinement does so knowing the act is contrary to law.

IPC Section 221 → BNS Section 259: Public servant intentionally failing to apprehend a person charged

An official legally bound to arrest or confine an accused or person liable to apprehension intentionally omits arrest or permits escape; the seriousness of the underlying offence sets the tier.

IPC Section 222 → BNS Section 260: Public servant intentionally failing to apprehend a sentenced person

Intentional non-arrest, escape or assistance to escape for a sentenced person or lawful detainee, with tiers according to the sentence or custody.

IPC Section 223 → BNS Section 261: Public servant negligently allowing escape

Unlike the preceding intentional offences, this provision addresses a negligent escape from lawful confinement.

IPC Section 224 → BNS Section 262: Resisting one's own lawful apprehension

Intentionally resisting lawful arrest for an offence, or escaping or attempting escape from lawful custody; punishment is additional to the underlying offence.

IPC Section 225 → BNS Section 263: Resisting another's lawful apprehension or rescue

Obstructing another person's lawful arrest or rescuing them from lawful custody; separate punishment tiers reflect the underlying charge or sentence.

IPC Section 225A → BNS Section 264: Other failure by public servant to apprehend

Residual provision for an official legally bound to arrest or confine a person where Sections 259–261 do not apply; distinguishes intentional and negligent failure.

IPC Section 225B → BNS Section 265: Other resistance, escape or rescue

Residual provision for resistance to arrest or escape or rescue where Sections 262–263 and other applicable law do not cover the conduct.

IPC Section 227 → BNS Section 266: Breach of conditional remission

A person who accepts conditional remission knowingly breaches its condition and becomes liable to the original punishment, less any part already served.

IPC Section 228 → BNS Section 267: Insult or interruption during judicial proceeding

Intentional insult or interruption of a public servant sitting in a judicial proceeding; BNS raises the maximum fine to ₹5,000.

IPC Section 228A(1)–(2) → BNS Section 72: Disclosure of a victim's identity

The rule against publishing information identifying victims of specified sexual offences and its narrow written-authorisation exceptions now appear in the BNS chapter on offences against women and children.

IPC Section 228A(3) → BNS Section 73: Publication of court proceedings without permission

The distinct IPC rule about publishing proceedings concerning such offences without the court's prior permission is BNS Section 73, subject to the statutory exception for Supreme Court and High Court judgments.

IPC Section 229 → BNS Section 268: Personation of an assessor

The BNS text refers to an assessor, whereas the IPC provision also refers to jurors; knowingly obtaining or serving in a role for which one is legally ineligible is prohibited.

IPC Section 229A → BNS Section 269: Failure to appear after release on bail bond or bond

Absence without sufficient cause contrary to the bail bond or bond attracts a separate penalty; forfeiture of the bond and liability for the underlying offence remain possible.

Repealed Provisions and Key Distinctions

IPC Section 216B (definition of harbour) and IPC Section 226 (unlawful return from transportation) are recorded as repealed in the supplied text; do not map them to a new BNS offence. IPC Section 228A(1)–(2) maps to BNS 72, while its separate publication-of-proceedings rule in subsection (3) maps to BNS 73. A false statement under a legal duty (191/227), a fabricated item intended for use as evidence (192/228), and corrupt use of known false evidence (196/233) require different conduct. Likewise, screening an offender (201/238), simply failing a legal reporting duty (202/239), and giving information known false (203/240) have different elements. For public servants, distinguish intentional omissions (221–222/259–260) from negligent escape (223/261). The BNS section on assessor personation (268) does not repeat the IPC's juror language.

Exam Method

First prove any oath, legal duty, official power, court process, underlying offence or lawful custody required by the selected provision. Then identify the accused's knowledge, intent, fraud, corruption or negligence and any statutory exception. Use the aggravated sentencing tier only when its additional facts are established. Select IPC or BNS by the relevant date, and treat changes in fine limits, imprisonment and placement as substantive comparison points.

Key Points

- IPC 191–195 and 195A correspond to BNS 227–232; IPC 196–225B correspond in order to BNS 233–265, subject to inserted IPC sections.
- IPC 228A(1)–(2) → BNS 72 and IPC 228A(3) → BNS 73; these BNS provisions are outside Chapter XIV.
- IPC 216B and IPC 226 are repealed in the supplied text and have no direct active offence to carry forward.
- IPC 227–229A correspond to BNS 266–269, with IPC 228A mapped separately to 72–73.
- Giving, fabricating and using false evidence are distinct forms of misconduct; verify materiality and mental state.
- BNS 229 sets fine ceilings of ₹10,000 for judicial proceedings and ₹5,000 for other false-evidence cases.
- BNS 248 provides an ordinary fine ceiling of ₹2 lakh for a false charge intended to injure.
- BNS 268 addresses personation of an assessor and omits the IPC provision's juror wording.

Statutory References

- Indian Penal Code, 1860 — Chapter XI, Sections 191–229A (including inserted and repealed sections)
- Bharatiya Nyaya Sanhita, 2023 — Chapter XIV, Sections 227–269
- Bharatiya Nyaya Sanhita, 2023 — Sections 72–73 (victim identity and proceedings)